

25TRCV04301 25TRCV04301

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-09-15

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SBA%2CE%2C09%2F15%2F2026

Source SHA-256: 1dbe00a02917c5a90373c509d82156ac4b87a81fb0830ded0a29a852d361e8df

Case Number: 25TRCV04301 Hearing Date: September 15, 2026 Dept: E

Superior Court
of California

County of Los
Angeles

Southwest
District

Torrance Dept. E

CORNELIA
DAVIS KLINE BY AND THROUGH HER SUCCESSOR IN INTEREST,

KRISTOPHER
RANSOM; and KRISTOPHER RANSOM, INDIVIDUALLY

Plaintiff,

Case No.:

25TRCV04301

vs.

[Tentative]

Granted

KND

DEVELOPMENT 53, LLC d/b/a KINDRED HOSPITAL SOUTH BAY, KINDRED HEALTHCARE OPERATING, LLC, KINDRED HEALTHCARE, LLC, and DOES 1-250

Defendants.

Hearing

Date: September

16, 2026

Moving Party: Plaintiffs Cornelia Davis Kline and
Kristopher Ransom

Responding Party: Defendant KND Development 53

HEARING: Motion to Compel Further
Responses to Special Interrogatories

The

Court considered the moving, opposition, and reply papers.

RULING

The Court grants the Motion to Compel
Further Responses to Special Interrogatories pursuant to a protective order and
a Belaire-West opt-out mechanism.

BACKGROUND

On

December 18, 2025, Plaintiffs Cornelia Davis Kline and Kristopher Ransom filed
the Complaint against Defendants KND Development 53, Kindred Healthcare
Operating, and Kindred Healthcare LLC, alleging causes of action for elder
abuse and neglect, negligent supervision, hiring, and retention, negligence,
violation of Evidence Code section 1158, IIED, fraud, and wrongful death.

On April 14, 2026,

Plaintiffs filed the subject discovery on Defendant KND Development 53, LLC.

On May 18, 2026,

Defendant filed responses.

On July 7, 2026,
Plaintiffs filed the Motion to Compel Further Responses to Special Interrogatories.

On September 2, 2026,
Defendant filed the Opposition.

On September 9, 2026,
Plaintiff filed the Reply.

EVIDENTIARY OBJECTIONS

Defendant's
objections to the declaration of Katherin Krol

Sustained:

Overruled: 1

Defendant's
objections to the declaration of Ashley Tyler

Sustained:

Overruled: 1

LEGAL STANDARD

The propounding party
may file motions to compel further responses to requests for production if it believes the responses received are (1) evasive, (2) incomplete, or (3) if the objections raised are meritless or overly general. (Code Civ. Proc., § 2031.310, subd. (a)

The burden is on the moving party to “set forth specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).) This burden “is met simply by a fact-specific showing of relevance.” (TBG Ins. Servs. Corp. v.

Superior Court (2002) 96 Cal.App.4th 443, 448.) In response to a motion to compel further responses, the respondent bears the burden of justifying any objections. (Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255.)

DISCUSSION

Meet and Confer

A motion to compel must be “accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., 2031.310 subd. (a).) Section 2016.040 states that “a meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., 2016.040.)

Here, the parties exchanged detailed meet and confer letters regarding the subject discovery. Therefore, the Court finds that Plaintiff has satisfied the meet and confer requirements.

Plaintiff requests that the Court order further responses to special interrogatories nos. 47-75.

Privacy

Defendant argues that the Court should deny Plaintiffs' Motion to Compel Further Responses because the interrogatories seek the identities of nonparty patients at Defendant Kindred South Bay and their responsible parties without justifying an invasion of those individuals' constitutionally protected right to privacy. Defendant contends that this information constitutes protected health information of nonparty individuals who possess a legally protected privacy interest and a reasonable expectation of privacy, and that Plaintiffs fail the two-part inquiry the California Supreme Court articulated for privacy claims. (Hill v. National Collegiate Athletic Assn. (1994) 7 Cal.4th 1.)

Defendant contends that the first element is met because third-party patient information carries clear protection under both federal and state law, including the Health

Insurance Portability and Accountability Act and the Confidentiality of Medical Information Act. (*Bugarin v. ChartOne, Inc.* (2006) 135 Cal.App.4th 1558, 1561.) Defendant reasons that disclosing a responsible party's identity requires access to a patient's medical information for nonmedical purposes, which the law forbids absent a lawful purpose related to medical care.

Defendant also argues

that the second element is met because patients and their responsible parties reasonably expect that medical record information will not be disclosed or used improperly. (*Hill, supra*, 7 Cal.4th 1, 36, 37.) Defendant emphasizes that medical patients have a bona fide interest in the confidentiality of information that may include symptoms, family history, diagnoses, and treatment, and that the mere identification of a patient reveals that the patient required care. (*County of Los Angeles v. Superior Court* (2021) 65 Cal.App.5th 621, 641.)

Defendant argues

that the third element is met because an inquiry into medical records is a serious invasion of privacy that goes to the core of concerns about the privacy of an individual's information. (*Grafilo v. Soorani* (2019) 41 Cal.App.5th 497, 507.) Defendant contends the interrogatories are overly expansive, spanning a two-to-three-year period beyond Decedent's admission, and that discovery is not justified merely because it might lead to admissible evidence when it intrudes on constitutionally protected areas. (*Board of Trustees v. Superior Court* (1981) 119 Cal.App.3d 516, 525.)

Defendant further argues

that Plaintiffs cannot demonstrate any countervailing interest sufficient to justify the discovery, because absent showings of direct relevance, compelling need, and unavailability of alternative sources, the privacy interest prevails. (*County of Los Angeles, supra*, 65 Cal.App.5th 621, 653.) On relevance, Defendant argues that its claims require expert testimony establishing that its own conduct caused Decedent's injury within a reasonable medical probability, so information about the care of other patients is irrelevant and inadmissible to prove negligence. (*Sanchez v. Kern Emergency Medical Transportation Corp.* (2017) 8 Cal.App.5th 146, 153.)

In opposition, Plaintiff argues that the Court should compel further responses to Special Interrogatories because the names and contact information of responsible parties are not protected medical

information under HIPAA or the CMIA. Plaintiff contends that witness identification is central to discovery, that the names and addresses of third parties are not particularly sensitive and are not medical records, and that such disclosure is routine and does not violate constitutional rights. Plaintiff contends that responsible parties are not patients, that their identities exist independently of any patient's medical condition, and that HIPAA and the CMIA protect health information rather than the bare contact information of a non-patient. (45 C.F.R. § 160.103; Civ. Code, § 56.05.) Plaintiff adds that the requests seeking patient identity, such as Special Interrogatory no. 56, seek identity rather than records or treatment details.

Plaintiff further argues

that Defendant's reliance on the medical-records privacy cases is misplaced because each involved compelled production of records or patient identity that itself revealed the underlying medical condition, unlike the basic witness information sought here. (County of Los Angeles v. Superior Court (2021) 65 Cal.App.5th 621, 627, 628.)

Last, Plaintiff

argues that the interrogatories are narrowly tailored and that Defendant made no evidentiary showing of burden or of a viable less-intrusive alternative. Plaintiff contends the calibrated remedy for third-party contact-information privacy is an opt-out notice and a protective order rather than withholding, that a burden objection requires an evidentiary showing Defendant did not make, and that discovery is not denied merely because responding requires work. (Belaire-West Landscape, Inc. v. Superior Court (2007) 149 Cal.App.4th 554.) Last, Plaintiff states that Defendant's less-intrusive-means argument is circular because the witnesses cannot be deposed until their identities are disclosed.

"The disclosure of the names and addresses of potential witnesses is a routine and essential part of pretrial discovery." (Puerto v. Superior Court (2008) 158 Cal.App.4th 1242, 1249-1250.) "There is no justification for concluding disclosure of contact information, after affording affected individuals the opportunity to opt out, would entail a serious invasion of privacy." (Williams v. Superior Court (2017) 3 Cal.5th 531, 555.)

Here, the discovery

concerns elderly care patient information, not employment information as in Williams and Puerto. While most of the special interrogatories do not connect any

medical information to the requested contact information, special interrogatories nos. 48, 52, 53, 56, 57, 61, 62, 63, 66, 67, request the contact information of patients who filed a complaint alleging failure in wound care, skin deterioration, or pressure injuries. Thus, these requests connect complaints, and thus patient names and contact information, to medical events. However, they are not a wholesale request for production of medical records as in *County of Los Angeles*, *supra*, 65 Cal.App.5th 621. (Id. at 62.)

Consequently, the Court finds that under a protective order and following an opt-out mechanism similar to the one seen in *Belaire-West Landscape, Inc. v. Superior Court* (2007) 149 Cal.App.4th 554, the subject special interrogatories do not entail a serious invasion of privacy. (Id. at 556.) Last, the Court finds that the requests are relevant and not overbroad.

Therefore, the Court grants the Motion to Compel Further Responses to Special Interrogatories pursuant to a protective order and a *Belaire-West* opt-out mechanism.

Sanctions

Plaintiff requests that the Court impose sanctions on Defendant in the amount of \$3,560. However, given the privacy concerns requiring a protective order and an opt-out mechanism, the Court finds that Defendant has substantial justification for opposing the instant motion.

Therefore, the Court denies the request for sanctions.